

September 11, 2026, Civil Law & Motion Tentative Rulings

1. CL0004070 Wells Fargo Bank, N.A. v. Patricia Lawrence

Plaintiff Wells Fargo Bank, N.A.'s unopposed motion for an order deeming the truth of the matters specified in Plaintiff's request for admission as admitted is granted unless Defendant Lawrence serves, before the hearing, a proposed response to the requests for admission in substantial compliance with Code of Civil Procedure Section 2033.220.

A party may move for an order deeming its Requests for Admission ("RFAs") admitted if the party to whom they are directed has failed to serve a timely response. Code Civ. Proc. § 2033.280(b). "The court shall make this order, unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220." Code Civ. Proc. § 2033.280(c). Responses are due within 30 days after service of the discovery. Code Civ. Proc. §2033.250(a). Response time is extended by manner of service. Code Civ. Proc. § 2016.050. Service by mail extends the deadline by 5 calendar days. Code Civ. Proc. § 1013(a).

At bar, Plaintiff served its RFAs on June 3, 2026 by mail, making July 8, 2026 the deadline for Defendant to serve a timely response. Lopez Decl. ¶¶ 2, 4. Plaintiff has not received any response from Defendant. *Id.* ¶ 4. Therefore, the matters specified in Plaintiff's RFAs are deemed admitted unless defendant serves, before the hearing, a proposed response to the requests for admission in substantial compliance with Code of Civil Procedure Section 2033.220.

Sanctions are mandated, but none are sought by Plaintiff. *See Code Civ. Proc. § 2033.280(c).* The Court concludes that Plaintiff waives its right to sanctions.

2. CU0002271 Christine Jones v. Nationstar Mortgage LLC, d/b/a Mr. Cooper, American West Lender, LLC, et al.

Defendants Nationstar Mortgage LLC d/b/a Mr. Cooper and America West Lender Services LLC's motion for judgment on the pleadings as to Plaintiff's complaint is removed from calendar without prejudice. There is no proof that the motion and notice of motion were served on Plaintiff or counsel on her behalf.

Defendants Nationstar Mortgage LLC d/b/a Mr. Cooper and America West Lender Services LLC's motion to remove lis pendens is removed from calendar without prejudice. There is no proof that the motion and notice of motion were served on Plaintiff or counsel on her behalf.

3. CU0002491 Malin Kumar Ram vs. Rodney Andrews, et al.

On the Court's own motion, Defendant Charles Hasbun's demurrer to the First Amended Complaint (FAC), Defendant Charles Hasbun's motion to strike in connection with the FAC, and Defendant Rodney Andrews' demurrer to the FAC are continued to December 4, 2026 at 10:00 a.m., in Department 6, to be heard concurrently with Defendant Isaiah Andrews' demurrer to the FAC. As to the Rodney Andrews' demurrer, the Court received a September 8, 2026, reply by